



Commission decides to refer Spain to the Court of Justice of the European Union for failing to comply with EU rules on State liability for breaches of Union law

Brussels, 1 October 2026

Today, the European Commission decided to refer **Spain** ([INFR\(2017\)4004](#)) to the Court of Justice of the European Union for not implementing the [judgment](#) of the Court of Justice of 28 June 2022 in case C-278/20 regarding state liability for breaches of Union law by the legislature. State liability is an important principle of EU law that establishes compensation for loss or harm caused to individuals by the legislature through breaches of Union law. In June 2022, the Court found that Spanish rules made it too difficult for individuals to receive compensation for damages caused by the State when adopting legislation contrary to Union law.

In 2015, the Commission received complaints regarding the incompatibility of certain aspects of the Spanish Law (40/2015) on the legal regime for the public sector, and of the Spanish Law (39/2015) on the common administrative procedure of the public administration, with EU law. The Commission opened an infringement procedure in [June 2017](#). Spain did not adopt any amendments to its legislation, even following the Commission's reasoned opinion of [January 2018](#). The Commission therefore decided to refer the case to the Court of Justice in [November 2019](#). In its [judgment](#) of 28 June 2022, the Court confirmed the Commission's position that Spain had violated Union law.

Under EU law, Member States are legally required to take the necessary measures to comply with the judgments of the Court of Justice as soon as possible. As Spain did not implement the judgment of the Court in its legal order, the Commission sent a letter of formal notice in [December 2025](#). Following further exchanges with the Spanish authorities, the judgment has still not been implemented, and a draft law amending the contested legislative provisions remains pending before the Spanish Parliament.

The Commission is therefore referring Spain again to the Court of Justice. If the Court finds that Spain has failed to comply with its judgment, it may impose a lump sum, a daily penalty payment, or both.

Background

The principle of effectiveness requires that national rules must not make it impossible or excessively difficult for individuals to exercise rights granted to them under EU law.

In its judgment of 28 June 2022 in case C-278/20, the Court of Justice found that certain Spanish rules governing claims for compensation for loss or harm caused by breaches of EU law by the Spanish legislature, imposed conditions and limitations that made it excessively difficult for individuals to obtain such compensation, in line with the position of the Commission.

More Information

[EU infringement procedure](#)

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